

Defendant objects on several grounds, including that the RFPs are vague, overbroad and not reasonably particularized. These objections are well taken. Similar complaint evidence may be relevant when limited to the specific problems experienced by the plaintiff. (See *Doppes v. Bentley Motors Inc.* (2009) 174 Cal.App.4th 967, 976-977, n. 2.) Furthermore, the information is relevant if limited to vehicles of the same year, make and model as the subject vehicle. (*Donlen v. Ford Motor Company* (2013) 217 Cal.App.4th 138, 154.) Here, the RFPs are not limited to the complaints involving 2022 vehicles. Thus, they are overbroad. Furthermore, the definition is unintelligible and does not appear to be readily searchable. Defendant should not be required to review other documents to determine the scope of the request. The parties must meet and confer to establish a workable definition for Transmission Defects.

RFP No. 28 requests documents setting forth GM's document retention policies from 2013 to present. Defendant objection on grounds that the request seeks privileged information and that the request is overbroad, unduly burdensome, vague, irrelevant, and fails to identify the information sought with reasonable particularity. Since there do not appear to be any allegations that GM failed to preserve or retain documents, the relevance of this request is minimal. Moreover, the scope dating back over ten years is excessive. As such, GM is required to provide a supplemental response including its document retention policies since the purchase of the Subject Vehicle.

SANCTIONS:

The court shall impose a monetary sanction against a party, person or attorney who unsuccessfully makes or opposes a motion to compel further responses to a demand for inspection or interrogatory unless it finds that the one subject to the sanction acted with substantial justification or other circumstances make the imposition of the sanction unjust. (CCP §2030.290(c); §2031.310(d).) "Whenever one party's improper actions even if not "willful"—in seeking or resisting discovery necessitate the court's intervention in a dispute, the losing party presumptively should pay a sanction to the prevailing party." (*Ellis v. Toshiba America Information Systems, Inc.* (2013) 218 Cal. App. 4th 853, 878.)

Plaintiff's request for sanctions is denied because Defendant's responses were substantially justified. The definition of Transmission Defect is vague and not reasonably particularized. It does not appear that Plaintiff engaged in a genuine, good faith effort to meet and confer regarding the definition and other issues raised by the Motion,

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CASE #	CASE NAME	HEARING NAME
CVRI2507279	SHAW vs SLICK'S INCORPORATED	MOTION TO SET ASIDE DEFAULT

Tentative Ruling:

Defendants UNOPPOSED Motion to Set Aside Default is granted.

Defendants must file separate responsive pleading within 20 days of this ruling.

Order to Show Cause is set for 9/23/26, as to why sanctions not to exceed \$1,500.00 or dismissal should not be imposed for Failure to file request for entry of default of ALL defendants on complaint pursuant to CRC 3.110(g) as to PLAINTIFF AND HECTOR C. PEREZ.

Based on the evidence presented in the declarations Baher Fangary and Eduardo Verdugo, the following factual timeline is established:

- March 30, 2026: Plaintiff attempted substituted service of the Summons and Complaint at Defendants' place of business by leaving copies with a door manager.
- April 11, 2026: Within the statutory period to respond, Defendant Fangary prepared an Answer and instructed his representative to serve it and upload it to the Court's electronic filing system.
- April 16, 2026: Plaintiff's counsel, Hector C. Perez, received a true copy of Defendants' Answer via certified mail.
- April 22, 2026: Plaintiff's counsel received a detailed meet-and-confer letter from Defendants outlining the factual basis of their defense.
- May 14, 2026: Defendant noticed that the April 11 electronic filing was rejected due to an appearance-fee balance; he promptly authorized the fee and resubmitted the Answer that same day.
- May 21, 2026: Plaintiff's counsel received a second detailed meet-and-confer letter from Defendants.
- May 22, 2026: While Defendants' corrected filing remained pending in the electronic queue, Plaintiff filed a Request for Entry of Default, which the Clerk entered that same day.
- May 29, 2026: The Clerk issued a second rejection notice regarding formatting requirements for the Proof of Service; Defendant immediately corrected the formatting and resubmitted the filing twice more that day.
- June 5, 2026: Plaintiff's counsel notified Defendants via email that default had been entered; Defendants immediately requested a voluntary stipulation to vacate, which Plaintiff declined.
- June 9, 2026: Defendants filed the present Motion to Set Aside Default.

Under Code of Civil Procedure section 473.5, the Court may provide relief when service of a summons has not resulted in "actual notice to a party in time to defend the action". As established in the Declaration of Baher Fangary, Defendants did not receive actual notice via personal service and acted with "absolute diligence" to defend the case once they became aware of the substituted service. "Actual notice" has been strictly construed by California courts to mean the "genuine knowledge of the party litigant," with the aim of implementing a policy that liberally grants relief so cases are resolved on their merits (*Ellard v. Conway* (2001) 94 Cal.App.4th 540, 547).

The Court finds that the delay in filing the Answer was attributable to technical e-filing rejection notices concerning fees and formatting, all of which Defendants promptly

addressed. Such technical issues constitute excusable neglect or clerical administrative delay justifying a set-aside (*Rojas v. Cutsforth* (1992) 11 Cal.App.4th 1131).

Relief under Code of Civil Procedure section 473.5 requires a showing that the lack of actual notice was not caused by the party's avoidance of service or inexcusable neglect. Defendants' proactive behavior—including serving an Answer on Plaintiff's counsel and sending multiple meet-and-confer letters weeks before the default was even sought—demonstrates a good-faith effort to participate in the litigation rather than an attempt to avoid it. fundamental fairness requires that a default be set aside when service does not result in actual knowledge (*Olvera v. Olvera* (1991) 232 Cal.App.3d 32, 40).

The Court further notes that Plaintiff has filed no opposition to this motion. In the absence of an opposition, the Court is entitled to consider the lack of response as an admission that the motion is meritorious (Riverside County Superior Court Local Rules; see also *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20). Because Plaintiff has not briefed any issues in opposition, the Court deems any potential arguments against the set-aside to have been abandoned (*Arnold v. Dow Chemical Co.* (2001) 91 Cal.App.4th 698, 729).

The law maintains a strong public policy favoring the resolution of cases on their merits rather than by default. Given Defendants' continuous efforts to participate in the litigation and the lack of any opposition from Plaintiff, relief is appropriate so that the case may proceed.

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CASE #	CASE NAME	HEARING NAME
CVRI2507448	BUTLER vs FCA US LLC	DEMURRER ON COMPLAINT
CVRI2507448	BUTLER vs FCA US LLC	MOTION TO STRIKE COMPLAINT

Tentative Ruling:

Defendant FCA's Demurrer is overruled; Defendant's Motion to Strike is granted with leave to amend within 20 days.

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (C.C.P., § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly alleged, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)